

30 September 2026

The Industrial Registrar
Queensland Industrial Relations Commission
qirc.registry@qirc.qld.gov.au
Attention: Chambers of Commissioner Dwyer

Copy: Ms Renee Matheson, Senior Appeals Officer, Workers' Compensation Regulator (Renee.Matheson@oir.qld.gov.au)

WC/2024/227 - Cory Lea Shepherd v Workers' Compensation Regulator

Direction 5 election; application for leave to file a Second Amended Statement of Facts and Contentions (Form 9A); status of the documents

Direction 5. Under direction 5 of the Further Directions Order (3) of 19 August 2026, the Appellant elects a further conference under section 552A of the Workers' Compensation and Rehabilitation Act 2003, and asks that the application below be dealt with at or before it.

The application, and what the amendment does. The Appellant applies for leave to file and serve the enclosed Second Amended Statement of Facts and Contentions (Form 9A), under the Commission's power to give directions (Industrial Relations Act 2016, section 451(2)). A copy goes to the Respondent with this letter, and its consent is sought. The amendment is sought because the matter has become much clearer since the Amended Form 9A of 7 April 2026. The Respondent has admitted 298 of the 303 facts in the Appellant's notice of 28 August 2026. It has admitted, or has since confirmed, 29 of the 39 documents behind them. It served its outlines of evidence on 24 September 2026 and, as at the date of this letter, has notified no medical or expert evidence. The Second Amended Form 9A accepts that the onus of proof is on the Appellant, withdraws the descriptions of conduct used in the earlier pleading, confines each stressor to the admitted facts and the documents that record them, states the contentions and the questions for decision on that footing, and adds no new allegation. No hearing date has been set, so the amendment is sought before the matter is listed and before either party prepares for hearing on the earlier pleading. The Appellant does not oppose the Respondent having time to amend its own statement of facts and contentions if it wishes. The pleading sets out the admitted facts under the stressor each one proves, with the paragraph number of the admission against each, so that the whole case can be read in one document. Each stressor is pleaded so that it can be decided on its own; where a fact matters to more than one stressor it is repeated, and the pleading says so. Part B.7 lists every document relied on and its status.

The matter, in summary. The Appellant was an Administration Officer (AO3) on the Logan Hospital Switchboard, a continuous 24/7 role whose function the Respondent admits is critical to patient safety (2, 13, 289). Stressor 1: from July 2023 database access was removed and not restored (40, 55); process changes were made effective the day they were notified, with no listed record of consultation (51, 181, 273); calls were misdirected and the directory was not corrected (56 to 69, 89 to 110); the manager's office hours were not stated for nine months (71 to 73); and the Appellant's written request for them was met with a request to retract (74 to 77). Stressor 2: pay was wrong in four fortnights (185 to 189); Payroll's direction of 3 May 2024 was not actioned at 13 May (193), was still awaited on 21 May (195), and was lodged on 28 May and recorded "Part Completed" (203); a paid leave entitlement was declined twice on attachments the Respondent admits were present (116, 118, 134). Stressor 3: a seven-hour break was rostered between 17 and 18 March 2024 (284) against a minimum of ten hours, or eight by written agreement (285), an agreement the employer's Human Resources says applied only to staff-initiated swaps, none being alleged (225, 234); the fatigue enquiry was answered after 23 days with a refusal (247, 249); no fatigue risk management existed at the Switchboard before 30 June 2024 (264, 269 to 271); and the Respondent's own review found the rostering was unreasonable management action (260) and employment a significant contributing factor (262). The Respondent's statement of facts and contentions identifies no management action relied on for section 32(5) (303), and its outlines of evidence served 24 September 2026 notify no medical or expert evidence.

The record, available on request. The notice to admit facts (303 facts), the notice to admit documents (39 documents at Annexure A) and the Respondent's responses of 8 September 2026 were served between the parties and are not on the Commission's file. They, and the documents themselves, are available to the Commission on request. If the Commission wishes to consider them with the enclosure, the Appellant will file them in the form the Registry directs, together with the four documents the Respondent confirmed on 23 September 2026. The Appellant will proceed on whatever orders and directions the Commissioner gives on this application, on the documents, and on the further conduct of the appeal.

Where the Appellant stands. The Appellant relies on the admitted facts, the documents in Part B.7, the treating medical records served on 9 September 2026, and the oral evidence of his treating general practitioner and psychiatrist. No medico-legal report is relied on. His list of witnesses filed, and his outlines of evidence served, on 9 September 2026 under directions 1 and 2 are not changed by the amendment. He seeks the orders in Part E.

The documents. The schedule on the following pages states the status of each of the 39 documents at Annexure A to the notices of 28 August 2026: admitted on 8 September 2026; disputed then and confirmed by the Respondent on 23 September 2026; or disputed and referred by the Respondent to Metro South Hospital and Health Service for copies. The facts recorded in every disputed document except the register at Tab 31 were admitted on 8 September 2026. The Appellant asks that the Respondent be directed to state, by a date the Commission fixes, whether it disputes the authenticity of each of the ten outstanding documents and on what ground; and that, if it does not, they be received at hearing subject to proof.

The Appellant asks that this letter and its enclosure be placed before Commissioner Dwyer and will proceed on the orders made.

Cory Lea Shepherd, Appellant (self-represented)

Schedule: the 39 documents at Annexure A (notices to admit served 28 August 2026) and their status

Tab	Document	Date	8 Sep 2026	23 Sep 2026	Position now
1A	Stibbard to the Switchboard team, "Hello & Update"	18 Jul 2023	Admitted	-	Admitted; tender
1B	Taylor to Reese, "Fwd: Communication Book Update", with her email to Logan Switch of 9:57 am	6 Jun 2023	Admitted	-	Admitted; tender
2	"Increase of hours and Workplace issues" chain and Reese's replies	7-10 Aug 2023	Admitted	-	Admitted; tender
3	Reese attaching HR Policy E12; emails of 4 and 8 Sep 2023	29 Aug-8 Sep 2023	Admitted	-	Admitted; tender
4	"Request to Increase Working Hours to Full Time Rotational Roster"; emails of 7 Aug 2023 1:43 pm and 5:11 pm	7 and 31 Aug 2023	Admitted	-	Admitted; tender
7	"Roster Concerns" chain	26 Apr-8 May 2024	Admitted	-	Admitted; tender
8	Reese to Pritchard "FW: Roster Concerns"; Reese to LBH_HR attaching qh-gdl-401-3.3	10 and 20 May 2024	Admitted	-	Admitted; tender
8A	Cover page, Fatigue risk management systems implementation guideline QH-GDL-401-3.3:2021	2021	Admitted	-	Admitted; tender
8B	MASPER emails (Taylor to Kwok and Wong; "MASPER process") and issue logs	9 May 2024 (logs 2-8 May)	Admitted	-	Admitted; tender
8C	Stibbard, "Switchboard After Hours On Call Manager PP24"	13 May 2024	Admitted	-	Admitted; tender
9	Taylor, "Switchboard Manager - On call and Hours."	17 May 2024	Admitted	-	Admitted; tender
9A	"Office Hours and Departmental Directives" chain (1:15 pm, 6:23 pm, 7:09 pm)	15 May 2024	Admitted	-	Admitted; tender
9B	Reese, "RE: Office Hours and Departmental Directives"	21 May 2024	Admitted	-	Admitted; tender
10	Taylor, "Sick leave 14.05.24", and its forwarding to Reese	14-15 May 2024	Admitted	-	Admitted; tender
11	Marriott (Integrated Respiratory Service) to Logan Switch; the Appellant to Taylor; Taylor's reply	15 and 20 May 2024	Admitted	-	Admitted; tender
12	"Corey Shepherd 388372 Pay issues" thread	3-13 May 2024	Admitted	-	Admitted; tender
13	Same thread, Taylor to the Appellant	21 May 2024	Admitted	-	Admitted; tender
14	Taylor, "Validation of Claims older than 3 months - Please sign"	28 May 2024	Admitted	-	Admitted; tender
15	myHR submissions report (MSH Item 11)	1 Feb-31 May 2024	Admitted	-	Admitted; tender
16	QH Leave Takings Report (MSH Item 15)	19 Mar 2024	Admitted	-	Admitted; tender
25	Review Decision 69983	24 Oct 2024	Admitted	-	Admitted; tender
26	Appellant's first notice to admit facts	before 18 Feb 2026	Admitted	-	Admitted; tender
27	Respondent's response to that notice	18 Feb 2026	Admitted	-	Admitted; tender
28	myHR leave request history, Process Reference 15480560 (MSH Item 11)	20 Feb-1 Mar 2024	Admitted	-	Admitted; tender
29	Instrument of Human Resource Sub-Delegation, Paid Special Pandemic Leave (MSH Item 13)	eff. 5 Dec 2022	Admitted	-	Admitted; tender
6	Taylor, "Afterhours Oncall Process - Switchboard"	15 Apr 2024	Disputed	Confirmed by the Respondent	Now admitted; tender
20	Metro South to Commissioner Dwyer, K-LM26/729, signed by the Chief Executive	5 Jun 2026	Disputed	Confirmed by the Respondent	Now admitted; tender
30	Taylor, "What's Chloe's Hours?!"	23 Aug 2023	Disputed	Confirmed by the Respondent	Now admitted; tender
30A	Taylor, "Good morning Team."	18 Jun 2024	Disputed	Confirmed by the Respondent	Now admitted; tender

Tab	Document	Date	8 Sep 2026	23 Sep 2026	Position now
1	Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital	undated	Disputed	Referred by the Respondent to Metro South for copies	Outstanding; contents admitted (facts 1-13)
5	Taylor, "Approved - Permanent Full Time FTE"	27 Sep 2023	Disputed	Referred by the Respondent to Metro South for copies	Outstanding; contents admitted (37-38)
17	Movement form, approved by Mr Hughes as delegate	27 Feb 2026	Disputed	Referred by the Respondent to Metro South for copies	Outstanding; contents admitted (14-15)
18	Movement form, approved by Mr Hughes	17 Apr 2026	Disputed	Referred by the Respondent to Metro South for copies	Outstanding; contents admitted (14-15)
19	Movement form, approved by Mr Hughes	9 Jun 2026	Disputed	Referred by the Respondent to Metro South for copies	Outstanding; contents admitted (14-15)
21	Forrest, Senior Consultant Human Resources, to the Appellant	7 Jul 2026	Disputed	Referred by the Respondent to Metro South for copies	Outstanding; contents admitted (224-225)
22	Consultation Paper, Proposed Rosters for Switchboard Services, signed by Mr Hughes 12 Nov 2024	Nov 2024	Disputed	Referred by the Respondent to Metro South for copies	Outstanding; contents admitted (169-175)
23	Consultation outcome, Proposed Rosters, signed by Mr Hughes 12 Dec 2024	Dec 2024	Disputed	Referred by the Respondent to Metro South for copies	Outstanding; contents admitted (167-168, 176-177)
31	Screen capture, "2024 Emergency Code Register.xlsx", March 2024 sheet, entries 16-20 Mar 2024	Mar 2024	Disputed	Referred by the Respondent to Metro South for copies	Outstanding; facts 228-231 not admitted
24	Moran (Together Queensland) to Jeffrey, Conaghan and the Appellant, "Switchboard Roster Feedback - For Delegates"	3 Nov 2025	Disputed	Not mentioned	Outstanding; contents admitted (178-179)

The Appellant asked the Respondent on 9 September 2026 to confirm the ten outstanding documents. The copies of Tabs 1, 5, 17 to 19, 21 to 24 and 31 came from the Appellant's own records; Tabs 17 to 19, 22 and 23 bear the signature of the employer's Director, Corporate Services. If Metro South produces the same documents to the Respondent, and the Respondent discloses them back to the Appellant, he will receive documents he already holds. This letter accompanies the Appellant's election and requested directions (one page). Enclosure: Second Amended Statement of Facts and Contentions (Form 9A), 26 pages.